



File No.: EXP202213022

RESOLUTION OF RECONSIDERATION APPEAL

Examined the reconsideration appeal filed by XFERA MÓVILES, S.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Data Protection Agency dated June 1, 2023, and based on the following

FACTS

FIRST: On June 1, 2023, a resolution was issued by the Director of the Spanish Data Protection Agency in file EXP202213022, in which it was agreed to uphold the claim for the exercise of rights made by A.A.A. (hereinafter the claimant) against the previously claimed appellant.

SECOND: The resolution now being appealed was duly notified to the appellant on June 14, 2023, as evidenced by the acknowledgment of receipt in the file.

THIRD: The appellant has submitted a reconsideration appeal to this Spanish Data Protection Agency, in which it states that the requested right was addressed by denying it with justification.

FOURTH: This Agency has forwarded the reconsideration appeal to the claimant for them to provide any arguments they deem appropriate.

LEGAL GROUNDS

I

The Director of the Spanish Data Protection Agency is competent to resolve this appeal in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Regarding the statements made by the appellant, the right was addressed and the recording related to the contract was deleted due to the time elapsed, more than five years.

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“...the right of access of the interested party was correctly addressed, providing them, in accordance with Article 15 of the GDPR, confirmation of whether or not personal data concerning them is being processed and access to the personal data subject to processing. Furthermore, it was expressly informed that the right of access to the recording should be denied as it no longer exists. Therefore, as this honorable Agency can verify, my client fully addressed the right on two occasions...”

However, despite the appellant's statements, the resolution outlines the reasons why it is considered that access has been incomplete, which are:

“...The right of access is not fully addressed since, upon analyzing the response before the admission of this claim, it was found that the information regarding the communication of data to third parties and international organizations was missing, as established by Article 15.1.c) of the GDPR, and it also does not address the claimant's request regarding voice recordings...”

III

In this case, in addition to the appeal presented, all previous documentation has been analyzed, and on one hand, we deny the request for the recording of the old contract due to the time elapsed, but on the other hand, the now-recurrent appellant still fails to prove that they have provided “the information regarding the communication of data to third parties and international organizations, as established by Article 15.1.c) of the GDPR,” one of the points that led to the claim being upheld and considering the access incomplete.

Therefore, in light of what has been provided, we consider that the appellant must prove that they have

fully addressed the right of access, and this appeal is partially upheld as access to the recordings is considered addressed due to the justified denial. However, it remains pending that the point regarding the information provided to third parties and international organizations is proven, as they have only fulfilled one of the two points for which the resolution was upheld at the time, and access remains incomplete.

In view of the cited provisions and others of general application, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO PARTIALLY UPHOLD the reconsideration appeal filed by XFERA MÓVILES, S.A. against the Resolution of this Spanish Data Protection Agency issued on June 1, 2023, in file EXP202213022. SECOND: TO NOTIFY this resolution to A.A.A. and XFERA MÓVILES, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process, an appeal may be filed within two months from the day following the notification of this act, as provided in Article 46.1 of Law 29/1998, of July 13, regulating the

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Contentious-Administrative Jurisdiction, a contentious administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of the aforementioned legal text.

185-111122

Mar España Martí

Director of the Spanish Data Protection Agency

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